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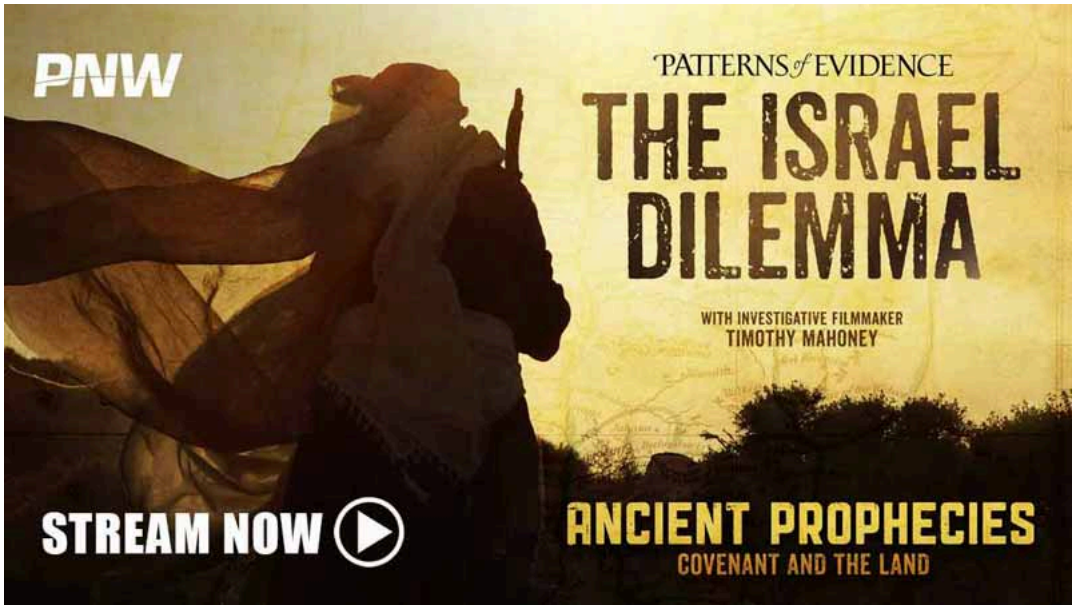

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ARTICLE

New Palestinian Constitution: Sharia Law And War Against The Jews

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BY OLIVIER MELNICK/HARBINGER'S DAILY MARCH 11, 2026

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Early in February 2026, a new document emerged, titled "Draft of the Temporary Constitution of the State of Palestine." While it is currently in draft form, the 53-page document introduces what the constitution of the State of Palestine should be. It comes at the time when the Trump Peace Plan is "supposedly" entering Phase II. Coincidence? I think not!

The document has over 160 articles. They hide under a veneer of democracy, justice and human rights, but it doesn't take much scratching of the surface to discover the real agenda which-to nobody's surprise-has no place for Jews or Israel. I read it so you won't have to. Let me share some of its most concerning statements.

The Land Assumption: Since Arafat's entrance onto the Middle East scene 60 years ago, the Palestinian narrative has been pushed on a global scale. First, there was some pushback, but eventually, the world bought the lies and now believes that Palestinians existed before the Jews and were displaced, colonized, occupied, and forced into becoming refugees.

The very first paragraph of the document's preamble sets the stage in no uncertain terms. It reads, "Stemming from the natural, inalienable, and non-negotiable rights of the Palestinian Arab people to self-determination and the justice of their cause, we present this constitution, which was drafted while the land remains under occupation, as a document for a state that refuses to see its existence except as a free birth from the womb of steadfastness and hope."

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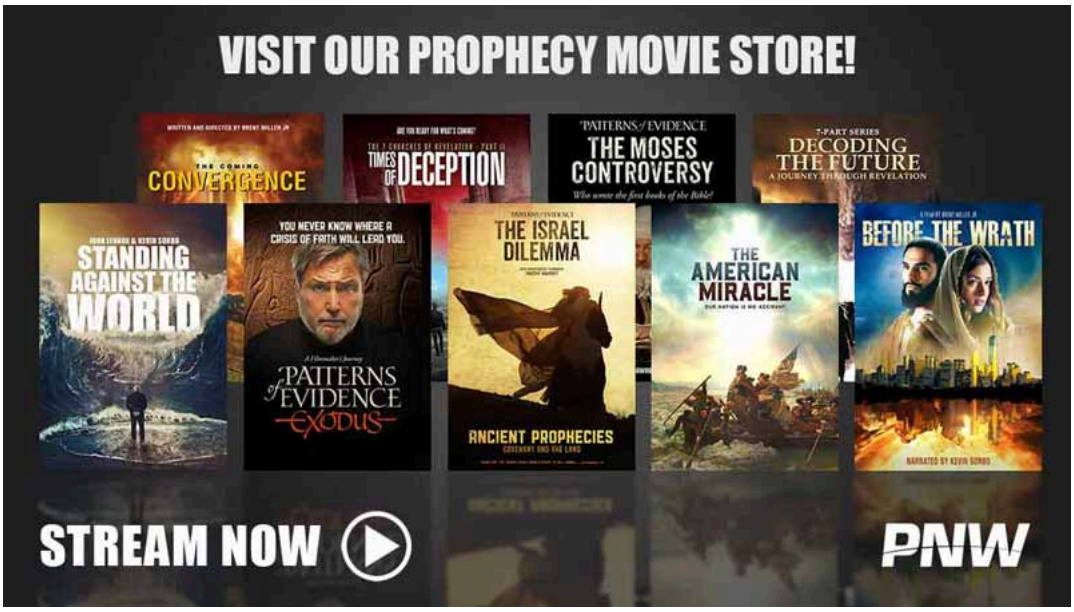
preached and where the Messenger of God travelled; it is the land of prophets, the meeting place of religions, and the cradle of civilizations. From its heart, this constitution draws the essence of humanity, where faith is a guide, tolerance is a lifestyle, and justice and peace are a goal for those who seek it."

Will any Jew be allowed to live in a Palestinian state if Palestine is free from the River to the Sea? Of course not! Who really believes that Palestine is the meeting place of religions and draws on the essence of humanity? By the way, if the world decides to "globalize the Intifada," will it come to a stop once Palestine becomes a state? No, because the Jews have been "in the way" since way before 1948. We will, unfortunately, remain as "the scapegoats of humanity."

It continues with, "Palestine is a state of humanity, a state of democracy, a state of right and law, a state of justice, and a state of freedom, not occupation." This short statement assumes that humanity, democracy, law, justice, and freedom can be achieved once Palestine ceases to be "occupied" by the "Zionist entity." In reality, it is Israel that is operating with all these virtues, in the midst of a77-year old conflict in the Middle East.



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Some of the 162 articles should send chills through the spines of people of goodwill, Christians, and Jews. Here are some examples:

Article 4 - Islam, Sharia, and Christianity. The principles of Islamic Sharia are a primary source for legislation. Islam is the official religion in the State of Palestine.

Really? Does anyone believe that Sharia Law will provide freedom of religion for anyone in Palestine? Our world is replete with instances of violence, imprisonment, and death for those who do not submit to Sharia. Proponents of Sharia Law don't even hide the fact that the best option for a non-Muslim (if they survive Sharia) is the status of dhimmi. A dhimmi is a non-Muslim subject to Islam with very few rights under Sharia. Incidentally, women also have almost no rights under Sharia, and yet the document proclaims,

Article -8 - Human Dignity, Equality. "The state works toward achieving equality between men and women in all rights and freedoms according to the provisions of this constitution, and takes the necessary legislative and procedural measures to ensure that women are fairly represented in elected bodies and in public office and senior management in the state without discrimination."

Article 15 - Rule of law. "The rule of law is the basis of government in the State of Palestine, and all persons and authorities are subject to it and committed to complying with it." Can anyone say, "October 7"?

Article 23 - Assault on personal freedoms. "Any assault on any of the personal freedoms or other public rights and freedoms guaranteed by the Constitution is a crime punishable by law."

Article 26 - Human dignity. "Every human being has an inherent dignity, and the State of Palestine is committed to respecting and protecting it. Any law that is incompatible with human dignity is considered void."

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Any assault on it, tampering with it, mutilating it, trafficking in it, or its parts is a crime punishable by law.

This is coming from people who use their own as human shields and hide their weapons in schools, private residences, and hospitals. The very ideology that worships death wants the world to believe that they value life?

Article 37 - Freedom of belief. Freedom of belief is absolute, and the freedom to practice religious rites and establish places of worship for followers of monotheistic religions is a right regulated by law. Don't hold your breath looking for the opening of First Baptist of Gaza City or Congregation Beit Gaza anytime soon. Sharia doesn't allow for anything but Islam. This is another lie.

Article 53 - Right to assembly. "Individuals have the right to assembly and to hold public and private meetings, and to participate in marches, sit-ins, and demonstrations, and all forms of peaceful protests in the framework of the law." Try to march on the streets of Palestine to peacefully protest anything about the Qur'an.

Article 63 - Protection from all forms of violence. "The State of Palestine is committed to taking the necessary legislative, administrative, and judicial measures to prevent violence, limit it, and prosecute its perpetrators. Every person has the right to protection from all forms of violence, whether physical, psychological, economic, or digital, whether issued by an individual, a group, an institution, or a public authority." Again, can anyone say "October 7"?

Article 82 - International Treaties. "In all cases, it is not permissible to conclude treaties that violate the provisions of the Constitution." This is a clear indication that Israelis will have no options and Israel will not be able to seek peace. This is almost like a soft-spoken declaration of war.

French President Emmanuel Macron was very instrumental in helping with the draft. I wonder if the largest Muslim community of Europe (France) had anything to do with it?

In his thorough analysis of the document, Elder of Zion rightfully states, "This is not a constitution for a state. It is a constitution against a state -- the one next door. Abbas told Macron he wanted 'a democratic, unarmed state committed to the rule of law.' What he produced is a legal architecture for permanent war, designed to be irreversible, built with European money and diplomatic support, and aimed not at governing Palestinians but at dismantling Israel through the international legal system."

I could go on with the analysis of the draft document, but it doesn't get better. No mention of Israel. No clear land boundaries. Assumed colonization and occupation throughout the document. Ignoring the clear one-sided Palestinian agenda, the rest of the language will appeal to our post-modern, social justice-hungry global village, and that is the real challenge, because most people have already accepted the Palestinian narrative as Gospel, so this document will probably look very promising to them. Keep in mind that most countries that are members of the UN have already recognized the State of Palestine.

We are nearing the complete fulfillment of Zechariah 12:3, "But it will be in that day, that I will make Jerusalem a heavy stone for all the peoples; all who heave it up will be severely injured. And all the nations of the earth will be gathered against it."

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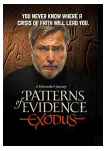

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